

IN THE SUPREME COURT OF PAKISTAN
(Original Jurisdiction)

PRESENT:

Mr. Justice Umar Ata Bandial, CJ
Mr. Justice Ijaz ul Ahsan
Mr. Justice Munib Akhtar
Mr. Justice Yahya Afridi
Mr. Justice Sayyed Mazahar Ali Akbar Naqvi
Mrs. Justice Ayesha A. Malik

Constitution Petition Nos.24 to 26 of 2023

(Trials of Civilians under the Army Act, 1952 is violative of the Constitution)

And

C.M. Appeal No. 80 of 2023 in Const. Petition Nil of 2023

(Declaration of trial of civilians under the Army Act, 1952 as unconstitutional, void and of no legal effect.)

And

Constitution Petition Nos.27 and 28 of 2023

(Trials of Civilians under the Army Act, 1952 is violative of the Constitution)

Jawwad S. Khawaja
(in Const.P.24/2023)

Aitzaz Ahsan
(in Const.P.25/2023)

Karamat Ali and others
(in Const.P.26/2023)

Imran Ahmed Khan Niazi
(in C.M. Appeal 80/2023)

Zaman Khan Vardag
(in Const.P.27/2023)

Junaid Razzaq
(in Const.P.28/2023)

Petitioner(s)

Versus

Federation of Pakistan, etc.
(in Const.P.24 & 27/2023)

Federation of Pakistan through the
Secretary, Ministry of Law and Justice,
Islamabad and others
(in Const.P.25-26 & 28/2023)

Federation of Pakistan through Ministry of
Defence through its Secretary and others
(in C.M. Appeal 80/2023)

...Respondent(s)

For the Petitioner(s) : Sardar Muhammad Latif Khan Khosa,
Sr. ASC
(in Const.P.25/2023)

Kh. Ahmad Hosain, ASC
(in Const.P.24/2023)

Mr. Faisal Siddiqi, ASC
(in Const.P.26/2023)

Mr. Hamid Khan, Sr. ASC
Mr. Shoaib Shaheen, ASC
Mr. Ajmal Ghaffar Toor, ASC
Syed Rifaqat Hussain Shah, AOR
(in C.M. Appeal 80/23)

Mr. Zaman Khan Vardag, in-person
(in Const.P.27/2023) (V.L. Lahore)

Mr. Salman Akram Raja, ASC
(in Const.P.28/2023)

For the respondents:

For the Federation : Mr. Mansoor Usman Awan,
Attorney General for Pakistan
Ch. Aamir Rehman, Addl. AGP

For Govt.
of Balochistan : Mr. Muhammad Ayaz Swati, Addl. AG

For Govt. of KP : Mr. Aamir Javid, AG
Mr. Sultan Mazhar Sher Khan, Addl.AG

For Govt. of Punjab : Mr. Khalid Ishaq, AG
Mr. Wasim Mumtaz Malik, Addl.AG
Mr. Sana Ullah Zahid, Addl. AG
Mr. Baligh-uz-Zaman Chaudhary, Addl.
AG

For Govt. of Sindh : Mr. Akbar Hussain, AG
Mr. Saif Ullah, Addl. AG
with Mr. Mohsin Shah,
Focal Personal to Chief Secretary
(Via video link from Karachi)

For Imran Ahmed Khan : Mr. Uzair Karamat Bhandari, ASC
Niazi (Respondent No.9
in Const P No.25/2023)

For Rana Sanaullah : Mr. Shah Khawar, ASC
(Respondent No.10 in
Const P No.25/2023)

For other respondent(s) : Nemo

Date of Hearing : 27.06.2023

ORDER

Mr. Uzair Karamat Bhandari, ASC appearing for respondent No.9 in Constitution Petition No.25 has completed his submissions.

2. The learned Attorney General for Pakistan has informed the Bench that he shall be filing relevant documents and his written synopsis before the next date of hearing. He has also provided the Bench the list of the 102 civilians who are currently in military custody along with the details of the stations that they are being kept in. On Court's query he has stated the following:

- i. The cases of the detained civilians are at the investigation stage.
- ii. No detained civilian is to be charged with the commission of any offence that attracts either capital punishment or a lengthy sentence.
- iii. Under the Pakistan Army Act Rules, 1954 after the completion of investigation accused persons are provided copies of the prosecution evidence and granted time to examine the same and to engage counsel. That stage has not arrived yet. Therefore, no military trial of any detained civilian has so far commenced. However, if any development in this regard takes place he will immediately inform the Chief Justice of the same in Chambers.
- iv. Telephonic communication of the detained civilians with nominated members of their families shall be established today and a weekly visitation schedule for them shall be chalked out expeditiously.
- v. No advocates and journalists are in military custody. Additionally, the Federal Government shall render its assistance to trace and recover the missing journalist, Mr. Imran Riaz Khan.

vi. He will seek the instructions of the Federal Government on whether the list of the 102 detained persons can be made public and shall apprise the Bench of the response in Chambers today.

3. Adjourned to a date after Eid holidays.

Islamabad
27.06.2023
Naseer/Meher LC